

M/s Om Sai Ram Rice Mill v. Chairman, Madhyanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court (Lucknow Bench) · Division Bench · 29 July 2025 · 2025:AHC-LKO:43695-DB · Writ-C No. 7078 of 2025 · **Writ disposed of; billing dispute relegated to clause 6.5.**

HEADNOTE

A writ court will not examine a billing dispute. The consumer may pursue an objection before the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided within six weeks; off-season benefit may be sought thereafter in terms of the impugned order.

FACTUAL SUMMARY

M/s Om Sai Ram Rice Mill, through its proprietor, and another petitioner, consumers of Madhyanchal Vidyut Vitran Nigam Ltd., challenged an order of the licensee. The mill faced electricity bills raised before April 2025 amounting to Rs. 12,39,271, which it disputed. The impugned order provided that off-season benefit for 1 April 2025 to 30 September 2025 would be available only if those bills were cleared and the dues paid. The mill sought writ interference with that condition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute (clause 6.5)

HOLDING

A writ court will not examine a billing dispute. The consumer may avail the statutory remedy under clause 6.5 of the Electricity Supply Code, 2005; any application filed or pending before the Executive Engineer shall be considered and decided as per law within six weeks. Once the billing dispute is resolved, the consumer may approach the authorities for off-season benefit in terms of the impugned order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PRE-APRIL 2025 BILLING DISPUTE OF RS. 12,39,271

Relegated to clause 6.5 before the Executive Engineer; High Court declined to examine the bills. ¶ 1